

STATE OF NEW YORK

3036--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 23, 2025

Introduced by M. of A. DILAN, ZACCARO, DAVILA -- read once and referred to the Committee on Governmental Operations -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law, in relation to prohibiting the release of certain records of victims of police violence by a coroner, coroner's physician or medical examiner

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The executive law is amended by adding a new section 845-f
2 to read as follows:

3 § 845-f. Release of certain records of victims of police violence;
4 medical examiners. Notwithstanding any provision of law to the contra-
5 ry, no coroner, coroner's physician or medical examiner who performs an
6 inquiry, autopsy or examination, including any report prepared thereon,
7 over an instance or occurrence in which a police officer, as defined in
8 subdivision thirty-four of section 1.20 of the criminal procedure law,
9 or a peace officer, as defined in section 2.10 of the criminal procedure
10 law, employs the use of force, as described in section eighty hundred
11 thirty-seven-t of this article, shall publicly release or otherwise
12 disseminate any information, including but not limited to providing such
13 information to a news or media organization, related to either the crim-
14 inal history or any mental health history of the individual who was the
15 subject of the use of force.

16 § 2. This act shall take effect on the thirtieth day after it shall
17 have become a law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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